

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Filed:

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THOMAS CUSHMAN,

Plaintiff,

Plaintiff designates
New York County
as Place of Trial

-against-

The place of venue is:
New York County

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, JOHN AND JANE DOES
- Police Officers as yet unidentified

SUMMONS

Plaintiff resides at:
396 Vanderbilt Avenue,
Brooklyn, New York 11238

Defendant(s).
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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff(s) Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 19, 2014



Ronald Rubinstein
RUBINSTEIN & COROZZO LLP
Attorneys for Plaintiff
260 Madison Avenue
New York, New York 10016
212-545-8777

DEFENDANT'S ADDRESS:

***City of New York, New York City Police Department
P.O. "J Doe(s")
Office of the Comptroller
100 Church Street
New York, New York 10007***

***The New York City Police Department
P.O. "J Doe(s")
One Police Plaza
New York, New York 10007***

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

THOMAS CUSHMAN, :
Plaintiff

COMPLAINT

-against- :

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,
JOHN AND JANE DOES- Police Officers :
as yet unidentified :
Defendant(s)

Plaintiff Thomas Cushman, by and through his attorneys, Rubinstein & Corozzo LLP,
complaining of the defendants, alleges, upon information and belief, as follows:

STATEMENT OF FACTS

1. On February 2, 2014, actor Philip Seymour Hoffman died tragically due to a lethal mix of heroin, cocaine and prescription medications detected in his body. Hoffman's death spurred an NYPD investigation into the source of the heroin obtained by Hoffman.

2. On the evening of February 4, 2014 Cushman, who was not connected in any way to Hoffman's death, had planned to meet up with his friend, Mr. Robert Vineberg ("Vineberg"). Cushman went to Vineberg's apartment located at 302 Mott Street, New York, New York.

3. Just minutes after his arrival at Vineberg's apartment, NYPD officers used a battering ram to break down the door and charged into the apartment. In the course of their barrage, NYPD officers who were dressed in full riot gear, slammed into Cushman with their bulletproof shields

causing him to fall to the floor. NYPD officers kicked him and ran on top of him. NYPD officers also hit Cushman in his chest area and on other parts of his body. Cushman was then placed in handcuffs.

4. There was no warrant for Cushman's arrest and no contraband was found on Cushman at the time of his arrest. Nor did Cushman resist arrest in any way. Nonetheless, NYPD officers exerted excessive force upon Cushman in the course of the arrest and caused him significant physical injuries and pain.

5. Cushman, in pain and with blood pouring from his eye, remained in handcuffs for an hour or more while he was transported to the police precinct. Cushman was held in police custody overnight and did not receive any medical treatment for his physical injuries caused by the NYPD officers' physical assault.

6. Upon being transported to 100 Center Street, NYPD officers conducted a "perp walk" of Cushman and other arrestees in front of the news media and leaked Cushman's name to the media. Cushman was written about in numerous articles published on the Internet and in hard copies that maligned Cushman as being associated with Hoffman's death and/or the sale and use of heroin.

7. Approximately twenty four hours after his arrest, Cushman was informed that the District Attorney's Office declined to prosecute him and was released from custody. However, the negative consequences of his false arrest and the NYPD officers' assault, including but not limited to physical injuries and pain, emotional pain and suffering, financial damages, and humiliation and reputational damages, continue to this day.

AS AND FOR A FIRST CAUSE
OF ACTION AGAINST DEFENDANT(S)

8. That at all times herein mentioned the Plaintiff, Thomas Cushman, was a resident of the County of Kings, City and State of New York and still resides at 396 Vanderbilt Avenue, Brooklyn, New York 11238.

9. That at all times herein mentioned the Defendant(s), THE CITY OF NEW YORK (hereinafter referred to as "CITY"), was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

10. That at all times herein mentioned, the Defendant(s), THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was a department, division or an agency duly organized and existing under and by virtue of the laws of the State and/or City of New York.

11. That at all times herein mentioned, The Defendant(s) "CITY" and "NYPD", hired, trained and were responsible for the actions of their police officers while said officers were under their control.

12. That on March 24, 2014, the Plaintiff duly served the defendant(s), with a Notice of Claim pursuant to Section 50-e of the Municipal Law within the time period proscribed by Law.

13. That the Plaintiff has complied with all the conditions precedent to the institution of this action and have complied with all the provisions of the charter of the City of New York in relation thereto and in particular has duly presented their claims to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentment of said verified demands and claims and the said Comptroller and/or Defendant(s) have wholly neglected, failed and refused to make any adjustment of payment thereof, and this action was commenced within one (1) year and ninety (90) days after the Plaintiff's arrest and false imprisonment.

14. That the Defendant(s) have conducted a Municipal Hearing pursuant to Section 50-h of the Municipal Law on or about August 27, 2014, and that the Plaintiff has otherwise complied with all of the requirements and conditions precedent required by law to be performed prior to the institution of this action.

15. That on the 4th day of February, 2014, on or about 8:00 P.M., at 262 Mott Street, County of New York, City and State of New York, officers of the NYPD wrongfully and forcibly arrested, restrained, harassed, intimidated, terrorized and assaulted Cushman.

16. That the actions of the Defendant(s) were done with malice and without probable cause to believe that after the arrest there would be a conviction of the Plaintiff.

17. That Defendant(s) did so for the purpose of vexing and harassing the Plaintiff and to disgrace him in his community and injuring him in his person and property and reputation.

18. That on the 4th day of February 2014, Plaintiff Cushman was arrested and taken to the New York City Police Department at Precinct No. 9 without just cause and later transferred to central booking by Police Officers and/or detectives, employed by the Defendant(s), who wrongfully, falsely and maliciously arrested, assaulted and imprisoned him, all of which causing him to suffer defamation of his character and reputation, as well as permanent and serious mental and physical injury.

19. That with actual malicious and/or gross negligence Defendant(s) did wrongfully detain and imprison Plaintiff Thomas Cushman without just cause under the guise of placing him under arrest under the Penal Law of the State of New York, and did wrongfully imprison claimant for over 24 hours.

20. That during the assault, arrest and false imprisonment other officers, agents, servants and/or employees of the Defendant(s) remained at the scene and did not stop or attempt

to stop the arrest of the Plaintiff thereby aiding and abetting each other in their unlawful acts and in violating the special duty they owed to the Plaintiff.

21. That said arrest, imprisonment, battery and assault were unwarranted and unjustified under the circumstances then and there existing and was caused solely and wholly by the negligence, carelessness and recklessness of the Defendant(s), their agents, servants and/or employees, and was without any fault, negligence or want of care on the part of the Plaintiff.

22. That the acts complained of were done by the Police Officers and/or detectives in the course of their employment with the Defendant(s) "CITY" and "NYPD", and were without cause and provocation; that the Defendant(s) were further careless and negligent in the manner and method in which they performed their duties; in that each acted without cause in assaulting, arresting and imprisoning the Plaintiff; in that each acted indiscriminately and in total disregard of the life, limb or safety of the Plaintiff; in that each failed to exercise due care, caution and prudence in the performance of their duties; and that each failed to stop and prevent the unlawful acts.

23. That solely as a result of the negligence, carelessness and recklessness of the Defendant(s), "CITY" and "NYPD" its agents, servants, employees and officers as aforesaid, the Plaintiff suffered defamation of his character, serious and permanent, psychological and physical injuries.

24. That by reason of the aforesaid, Plaintiff was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties for a considerable time, suffered grievous physical pain and mental anguish and has been damaged and demands compensatory and punitive damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST, WRONGFUL IMPRISONMENT

25. Plaintiff Thomas Cushman repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "24" with the same force and effect as if more fully set forth at length herein.

26. Defendant(s) without cause, provocation or probable cause did arrest, detain and imprison the Plaintiff depriving him of his liberty and civil rights.

27. That Defendant(s) failed to investigate the facts and circumstances surrounding the Plaintiff's arrest and failed to follow up on information provided by Plaintiff at the time of his arrest resulting in his wrongful imprisonment.

28. That by reason of the aforesaid, Plaintiff, was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties including employment for a considerable time, suffered grievous physical pain and mental anguish and have been damaged and demand compensatory damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" with the same force and effect as if more fully set forth at length herein.

30. That the Defendant(s) severally and jointly did violate the Plaintiff's Civil Rights granted to him pursuant to 42 US Code Section 1983 et. sec. 1988, and the 4th and 14th Amendments to the Constitution of the United States.

31. That the defendants, "CITY" and "NYPD" were responsible for the training, supervision and conduct of NYPD Police Officers, and were further responsible by law for enforcing regulations of the City of New York and for insuring that the "NYPD" Police Officers obey the laws of the State of New York and the United States of America.

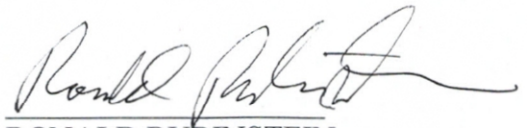
32. As a direct and proximate result of the above referenced unlawful and malicious arrest, detainment and false imprisonment of the Plaintiff, by the Defendant(s), committed under color of law and acting under their authority as Police Officers for the "NYPD", the Plaintiff suffered physical and emotional harm and was deprived of his right to be secure in his person against unreasonable seizure of his person in violation of Plaintiff's Civil Rights.

33 As a direct and proximate result of the malicious and outrageous conduct of the NYPD Police Officers as set forth above, the Plaintiff suffered emotional distress and mental anguish, personal injuries, property damage and will suffer additional special damages in the future in an amount that cannot yet be determined.

34. The actions of the Defendant(s), the City and NYPD, as set forth above was intentional, wanton, malicious and oppressive thereby entitling the Plaintiff to an award of compensatory, punitive damages, and attorneys fees in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s), in the First Cause of Action the Second Cause of Action and the Third Cause of Action, and the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
December 19, 2014

A handwritten signature in black ink, appearing to read "Ronald Rubinstein", written over a horizontal line.

RONALD RUBINSTEIN

RUBINSTEIN & COROZZO LLP

Attorneys for Plaintiff

260 Madison Avenue

New York, New York 10016

212-545-8777